

Rules for Protection of Forests From Fire, 1969

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State of Nagaland - Act

Rules for Protection of Forests From Fire, 1969

NAGALAND

India

Rules for Protection of Forests From Fire, 1969

Rule RULES-FOR-PROTECTION-OF-FORESTS-FROM-FIRE-1969 of 1969

Published on 1 March 1969

Commenced on 1 March 1969

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Rules for Protection of Forests From Fire, 1969

Published vide Notification No. For-5 (Misc 43/67/(5), dated the 1st March, 1969

Last Updated 18th February, 2020

Notification No. For-5 (Misc 43/67/(5), dated the 1st March, 1969. - In exercise of the powers conferred by Section 24 (b) and (c) of the Nagaland Forest Act, 1968 (Act No. 3 1968), the Governor of Nagaland is pleased to make the following rules to protect the Government Reserved Forests from fire within the State of Nagaland.

These rules shall come into force with immediate effect. These rules shall apply to all areas to which the Nagaland Forest Act, 1968, applies.

1.

No person shall, within a forest reserve which is specially protected from fire or along its boundaries, kindle or carry any fire, or leave any fire burning otherwise than as provided in Rule 11.

2.

Between the 1st February and 31st May no person desirous of clearing by fire any standing forest or grass land within half a mile of the boundary of the forest reserves which is specially protected from fire, or of burning rubbish within such distance of such reserve, shall do so otherwise than in accordance with the following rules:

(i)

Notice of such desire shall be at least one week beforehand to the nearest local Range Forest Official, or to whoever may be in-charge of the range office at the time ;

(ii)

He shall choose for such burning a day or time when a high wind is not blowing;

(iii)

He shall take every precaution that the fire does not spread beyond the limits of the land to be burnt over, or of the heaps into which the rubbish to be burnt may have been made, and in case of accident shall render every assistance in preventing the fire from spreading into the reserve.

3.

Any person collecting inflammable forest produce such as grass or bamboos, on land adjoining a forest reserve and any holder of a permit to collect such produce from the forest reserve, shall stock the material so collected in an open space.

4.

All persons travelling on roads, paths or tracks passing through or along the boundary of a forest reserve which is specially protected from fire, shall camp only at such places as may be cleared and set apart for such purpose by the Divisional Forest Officer, who shall yearly publish a list of such camping grounds. Camping at localities other than those so set apart along such roads, paths or tracks is prohibited. Persons using such camping grounds shall light fires they may require for cooking or other purposes in such way as not to endanger the forest reserve or the buildings or other property, on the camping grounds.

Eviction from Reserved Forests under Section 72 (c)

1. Subject as hereinafter provided, the Divisional Forest Officer may eject any person from land in a reserved forest.

2. Such person may be ejected or ordered to vacate forthwith, and the Divisional Forest Officer may sell, confiscate or destroy any crop raised, or any building or other construction erected without authority

3. Any person or persons intentionally disobeying an order to vacate under sub-rule(2) shall, without prejudice to appropriate action under Sections 23 and 24 of the Act be liable to a penalty which may extend to two hundred rupees, and, in case such disobedience is continued, to a further penalty which may extend to fifty rupees for each day during which such breach continues.

Form "A"

Licence to hunt and shoot granted under Rule 10 (Obverse)

(Fee Rs. 50)

Licence No Date of issue. Date of expiry 31st May, 20.....Name of the
Licensee.....Status.....Address.

Name of reserved forest or portion thereof, for which the licence is issued and the boundaries:

Date.....

Signature of Issuing Officer

The above licence is issued subject to Rules 2, 3, 8, 9, 14, 21 and 22 of Notification No.....

Endorsement under Rule 11

This licence is endorsed under Rule 11 subject to Rules 2, 3, 8, 9, 10, 12,14, 21 and 22 for the area and period.

Date.....

Signature of Endorsing Officer

Endorsement under Rule 15

This licence is endorsed under Rule 15 subject to Rules 2, 3, 6, 8, 9, 10, 14, 16, 17, 21 and 22 for the area and period :

Date.....

Signature of Endorsing Officer

(Reverse)

Return of animals shot

Period	Species	No.	Species	No.	Signature of the Forest Officer
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From to..

Date Signature

Form "B"

Licence to fish granted under from... 20.

(Obverse)

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| Fee

| For one day

| Rs. 5

|-

|

| For one month

| Rs. 20

|-

|

| For two months

| Rs. 40

|-

|

| For one season

| Rs. 60

|-

| No.....

| Date of issue

| Date of expiry

|-

| Name of licensee.....

|

| Status.....Address.....

|-

| Name of river or part thereof or rivers in which fishing is permitted.

|-

| Details

|-

| Date.....

|}

Signature of the Issuing Officer

(Reverse)

Conditions under which this licence is issued

1. This licence is issued subject to the rules prescribed in Notification No.....

2. The use of rod and line only is permitted under this licence.

3. This licence conveys no exclusive right to fish in the rivers specified above.

4. This licence must accompany the licensee and be produced on demand by any Forest Officer and must be returned to the Issuing Officer immediately on its expiry.

5.

The killing of fish by explosive or poison and the netting of fish are prohibited but the netting of small fish or use as live or dead bait is not prohibited.

6.

The licence does not entitle the holder to shoot or without the previous permission of the Divisional Forest Officer to carry

firearms in any reserved forest.

7.

The licence is not transferable.

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